

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB4237 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____
Amendment submitted by: Chris Kannady _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 4237

By: Kannady of the House

and

Gollihare of the Senate

FLOOR SUBSTITUTE

An Act relating to criminal procedure; amending 22 O.S. 2021, Section 983, as last amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025, Section 983), which relates to court costs and fees; modifying guidelines and procedures for cost arrest warrants and the collection of court financial obligations; directing courts to impose fines, courts costs, fees, and assessments authorized by law; allowing ability-to-pay hearings to be conducted at time of sentencing; requiring defendants to pay financial obligations; providing exceptions; providing list of conditions; presuming defendant is unable to pay if certain conditions are satisfied; providing for the waiver of financial obligations; directing courts to make written findings; authorizing courts to reduce amounts owed; providing options in lieu of payment; allowing courts to reopen previous determinations and reduce or waive remaining financial obligations; extending certain deadlines; prohibiting the imprisonment of defendants or suspension of driving privileges for failing to pay financial obligations; directing the Administrative Office of the Courts to develop certain forms, procedural rules, and guidelines; making requirements applicable to sentences after certain date; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. AMENDATORY 22 O.S. 2021, Section 983, as last
3 amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025,
4 Section 983), is amended to read as follows:

5 Section 983. A. As used in this section, unless the context
6 otherwise requires:

7 1. "Cost arrest warrant" means a warrant authorizing arrest
8 that is issued by a court under the following circumstances:

- 9 a. failure to comply with the terms of a court financial
10 obligations payment plan,
- 11 b. failure to appear at a cost hearing or willfulness
12 hearing, or
- 13 c. failure to appear at the office of the court clerk of
14 the county in which the court financial obligation is
15 owed within ~~ten (10)~~ thirty (30) days of being cited
16 by a law enforcement officer to appear;

17 2. "Cost cite and release warrant" means a warrant issued by a
18 court authorizing citation and release under the following
19 circumstances:

- 20 a. failure to comply with terms of a court financial
21 obligations payment plan, or
- 22 b. failure to appear at a cost hearing or willfulness
23 hearing;

24

1 3. "Cost hearing" means a hearing in which the court determines
2 the ability of a defendant to pay court financial obligations. Once
3 a cost hearing date has been set, all court financial obligations
4 shall be suspended until the cost hearing has been held;

5 4. "Court financial obligation" means all financial obligations
6 including fines, costs, fees, and assessments, imposed by the court
7 or required by law to be paid, excluding restitution or payments to
8 be made other than to the court clerk;

9 5. "Payment-in-full" means a court financial payment term that
10 requires the defendant to pay the full amount of court financial
11 obligations owed within ninety (90) days of a plea or sentence in
12 the district court or within thirty (30) days of a plea or sentence
13 in the municipal court;

14 6. "Payment-in-installments" means payment terms for court
15 financial obligations that require the defendant to make monthly
16 payments in any amount until the amount owed is fully paid; and

17 7. "Willfulness hearing" means a hearing in which the court
18 determines whether a defendant who has previously been found to have
19 the ability to pay court financial obligations has willfully failed
20 to pay the debt.

21 B. 1. ~~Except in cases provided for in Section 983b of this~~
22 ~~title, when the judgment and sentence of a court, either in whole or~~
23 ~~in part, imposes court financial obligations upon a defendant, the~~
24 ~~court at the time of At sentencing may immediately, or at any point~~

1 ~~thereafter until the debt is either paid or waived, determine the~~
2 ~~ability of a defendant to pay the court financial obligations. The~~
3 ~~for any criminal offense, the court may make such determinations at~~
4 ~~a cost hearing or upon written motion or affidavit by the defendant.~~
5 ~~The ability of a defendant to pay court financial obligations may~~
6 ~~not impact the sentence imposed.~~

7 ~~2. Defendants with court financial obligations who are found by~~
8 ~~shall impose any fines, court costs, fees, and assessments~~
9 ~~authorized by law, subject to the provisions of paragraphs 3 and 4~~
10 ~~of this subsection and subsection C of this section.~~

11 ~~2. At the time of sentencing, the court to be unable to pay, in~~
12 ~~whole or in part, shall be relieved of the debt by offer to conduct,~~
13 ~~contemporaneously with sentencing, an ability-to-pay hearing to~~
14 ~~determine the ability of the defendant to satisfy such financial~~
15 ~~obligations.~~

16 ~~3. The defendant shall be ordered to pay the imposed fines,~~
17 ~~court costs, fees, and assessments unless the court through a~~
18 ~~hardship waiver of the court financial obligations, either in whole~~
19 ~~or in part.~~

20 ~~3. In determining the ability of a defendant to pay, the court~~
21 ~~shall consider makes written findings that one or more of the~~
22 ~~following factors conditions is met:~~

- a. ~~individual and the~~ household income of the defendant
is less than one hundred fifty percent (150%) of the
federal poverty level,
- b. ~~household living expenses,~~
- c. ~~number of dependents,~~
- d. ~~assets,~~
- e. ~~child support obligations,~~
- f. ~~physical or mental health conditions that diminish the~~
~~ability to generate income or manage resources,~~
- g. ~~additional case-related expenses to be paid by the~~
~~defendant, and~~
- h. ~~any other factors relevant to the ability of the~~
~~defendant to pay.~~

~~4. In determining the ability of a defendant to pay, the~~
~~following shall not be considered as income or assets:~~

- a. ~~child support income,~~
- b. ~~any monies received from a federal, state, or tribal~~
~~government need-based or disability assistance~~
~~program, or~~
- c. ~~assets exempt from bankruptcy.~~

~~5. Defendants in the following circumstances are presumed~~
~~unable to pay and eligible for relief under paragraph 2 of this~~
~~subsection:~~

- 1 a. ~~designated as totally disabled by any federal, state,~~
2 ~~or tribal disability services program including but~~
3 ~~not limited to military disability, Social Security~~
4 ~~Disability Insurance, Supplemental Security Income, or~~
5 ~~tribal disability benefits,~~
- 6 b. ~~receives support from the~~ defendant is receiving
7 state, local, or federal benefits based on indigency
8 or receiving need-based public assistance such as
9 Temporary Assistance for Needy Families (TANF)
10 program, ~~(TANF),~~ Supplemental Nutrition Assistance
11 Program~~,~~ (SNAP), the Special Supplemental Nutrition
12 Program for Women, Infants, and Children nutrition
13 education and supplemental food program, or any other
14 federal need-based financial support,
- 15 c. ~~receives~~ subsidized housing ~~support through~~ programs
16 such as the Housing Choice Voucher program, the United
17 States Department of Housing and Urban Development, or
18 other state, local, or federal government housing
19 subsidy program, or
- 20 d. ~~total income is below one hundred fifty percent (150%)~~
21 ~~of the federal poverty level~~
- 22 d. the defendant is designated as totally disabled by a
23 federal, state, or tribal disability services program
24 including, but not limited to, military disability

1 benefits, Social Security Disability Insurance (SSDI),
2 Supplemental Security Income (SSI), or tribal
3 disability benefits.

4 ~~C. 1. At the time of a plea or sentencing, the court shall~~
5 ~~inform the defendant of the total court financial obligations owed,~~
6 ~~the consequences of failing to pay~~

7 4. If the court financial obligations, and that finds that any
8 of the foregoing conditions are satisfied, the defendant may request
9 a cost hearing if at any time he or she is shall be presumed unable
10 to pay the court financial obligations, at which point, and the
11 finances, court costs, fees, and assessments shall be waived in whole.

12 ~~The court may waive all or part of the debt owed. If the total~~
13 ~~amount of court financial obligations owed is not available at the~~
14 ~~time of the plea or sentencing, the court shall inform the defendant~~
15 ~~that court financial obligations have been incurred and the time and~~
16 ~~location where the defendant may learn of the total amount owed make~~
17 ~~written findings to support such waiver.~~

18 ~~2. The court shall order the defendant to appear immediately~~
19 ~~after sentencing at the office of the court clerk to provide current~~
20 ~~contact information and to either select payment terms or request a~~
21 ~~cost hearing. Failure to immediately report to the court clerk~~
22 ~~shall result in the full amount of court financial obligations to be~~
23 ~~due thirty (30) days from the date of the plea or sentencing in~~

~~district courts or thirty (30) days from the date of the plea or sentencing in municipal courts.~~

~~3. Payment of court financial obligations may be made under the following terms:~~

~~a. payment in full, or~~

~~b. payment in installments.~~

~~Upon any change in circumstances affecting the ability of a defendant to pay, a defendant may request a cost hearing before the court by contacting the court clerk.~~

~~4. The district court for each county and all municipal courts shall provide a cost hearing for any defendant upon request, either by establishing a dedicated docket or on an as-requested basis. A defendant who requests a cost hearing will receive a summons by personal service or by United States mail to appear in court as required by subsection C of this section. If a defendant fails to appear for a requested cost hearing, the court may issue either a cost cite and release warrant or a cost arrest warrant. No fees shall be assessed or collected from the defendant as a consequence of either requesting a cost hearing or the issuing of a cost cite and release warrant.~~

~~D. In determining the ability of the defendant to pay court financial obligations, the court may rely on testimony, relevant documents, and any information provided by the defendant using a cost hearing affidavit promulgated by the Court of Criminal Appeals.~~

1 ~~In addition, the court may make inquiry of the defendant and~~
2 ~~consider any other evidence or testimony concerning the ability of~~
3 ~~the defendant to pay.~~

4 ~~E. 1. If at the initial cost hearing or any subsequent cost~~
5 ~~hearing,~~

6 C. If neither paragraphs 3 or 4 of subsection B of this section
7 is satisfied and the court determines that the defendant ~~is able~~ has
8 some ability to pay some or all of but not the ability to pay the
9 full amount, the court ~~financial obligations, the court may order~~
10 ~~any of the following conditions for payment:~~

11 ~~a. payment in full,~~

12 ~~b. payment in installments,~~

13 ~~c. financial incentive under a set of conditions~~
14 ~~determined by the court, or~~

15 ~~d. community service in lieu of payment; provided, the~~
16 ~~defendant receive credit for no less than two times~~
17 ~~the amount of the minimum wage specified pursuant to~~
18 ~~state law for each hour of community service.~~

19 2. Any shall reduce the amount owed or impose payment in part,
20 and may order community service in lieu of payment, establish an
21 installment plan consistent with the financial capacity of the
22 ~~defendant who fails to comply with the terms of the payment plan~~
23 ~~ordered by the court shall be considered delinquent and the court~~
24 ~~may issue either a cost cite and release warrant or a cost arrest~~

1 ~~warrant~~, or order the defendant to participate in another
2 alternative program.

3 ~~F. D.~~ If at any later time, the court ~~determines that a waiver~~
4 ~~of any of the court~~ receives credible evidence that the financial
5 ~~obligations is warranted~~ circumstances of the defendant satisfy one
6 or more of the criteria in paragraph 3 of subsection B of this
7 section, or that the circumstances described in subsection C of this
8 section apply, or otherwise demonstrate inability to pay the full
9 remaining balance, the court shall ~~apply the same percentage~~
10 ~~reduction equally to all~~ reopen the determination and may reduce or
11 waive the remaining fines, court costs, fees, and assessments,
12 ~~excluding restitution~~ accordingly.

13 ~~G. E.~~ 1. A defendant is considered delinquent in the payment
14 of court financial obligations under the following circumstances:

- 15 a. when the total amount due has not been paid by the due
16 date, or
17 b. when no installment payments have been received in the
18 most recent ninety-day period.

19 2. The court clerk shall periodically review cases for
20 delinquency at least once every six (6) months and, upon identifying
21 a delinquent defendant, notify the court which shall, within ten
22 (10) days thereafter, set a cost hearing for the court to determine
23 if the defendant is able to pay pursuant to the criteria set forth
24 in this section. The cost hearing shall be set within forty-five

1 (45) days of the issuance of the summons. The hearing shall be set
2 on a date that shall allow the court clerk to issue a summons
3 fourteen (14) days prior to the cost hearing. Defendants shall
4 incur no additional fees associated with the issuance of the
5 summons.

6 3. At least fourteen (14) days prior to the cost hearing, the
7 court clerk shall issue one summons to the defendant to be served by
8 United States mail to the mailing address of the defendant on file
9 in the case, substantially as follows:

10 SUMMONS

11 You are ORDERED to appear for a COST HEARING at a specified
12 time, place, and date to determine if you are financially able to
13 pay the fines, costs, fees, or assessments or an installment due in
14 Case No. _____.

15 YOU MUST BE PRESENT AT THE HEARING.

16 At any time before the date of the cost hearing, you may contact
17 the court clerk and pay the amount due or request in writing or in
18 person prior to the court date, that the hearing be rescheduled for
19 no later than thirty (30) days after the scheduled time.

20 THIS IS NOT AN ARREST WARRANT. However, if you fail to appear
21 for the cost hearing or pay the amount due, the court may issue a
22 WARRANT and may refer the case to a court cost compliance liaison
23 which will cause an additional administrative fee of up to thirty-

1 five percent (35%) to be added to the amount owed and may include
2 additional costs imposed by the court.

3 4. Referrals to the court cost compliance program as provided
4 in subsection ~~H~~ J of this section shall be made as follows:

5 a. courts shall refer a case to the court cost compliance
6 program upon the issuance of a cost arrest warrant,

7 b. courts may refer a case to the court cost compliance
8 program upon the issuance of a cost cite and release
9 warrant, or

10 c. courts may refer a case to the court cost compliance
11 program without the issuance of a warrant; provided,
12 the defendant is delinquent and has had sufficient
13 notice and opportunity to have a cost hearing.

14 5. A municipal court, in lieu of mailing the summons provided
15 for in this subsection, may give the summons to the defendant in
16 person at the time of sentencing or subsequent appearance of a
17 specific date, time, and place, not fewer than thirty (30) days nor
18 more than one hundred twenty (120) days from the date of sentencing
19 to appear for a cost hearing if the court financial obligations
20 remain unpaid.

21 ~~H~~. F. 1. If a defendant is found by a law enforcement officer
22 to have an outstanding cost cite and release warrant, the law
23 enforcement officer shall issue a Warning/Notice to appear within
24 ~~ten (10)~~ thirty (30) days of release from detention on the warrant

1 to the court clerk of the court in which the court financial
2 obligations are owed. If the officer has the necessary equipment,
3 the officer shall immediately transmit the Warning/Notice
4 electronically to the court clerk of the court in which the court
5 financial obligations are owed. The law enforcement officer shall
6 not take the defendant into custody on the cite and release warrant.
7 If the law enforcement officer is unable to transmit the
8 Warning/Notice electronically to the court clerk, the officer shall
9 inform the appropriate department staff member within the agency of
10 the law enforcement officer of the Warning/Notice within five (5)
11 days. The department staff member shall then promptly notify the
12 law enforcement agency in the jurisdiction that issued the warrant
13 electronically who shall promptly notify the court clerk. The
14 electronic communication shall be treated as a duplicate original
15 for all purposes in any subsequent hearings before the appropriate
16 court.

17 2. If the defendant reports to the office of the court clerk
18 within the ~~ten (10)~~ thirty (30) days, the court clerk shall:

- 19 a. inform the court of the Warning/Notice to the
20 defendant and contact,
- 21 b. schedule a cost hearing pursuant to applicable local
22 court rule, and
- 23 c. submit the warrant to the court for recall pending the
24 cost hearing.

1 3. If the defendant fails to report to the office of the court
2 clerk within the ~~ten (10)~~ thirty (30) days, the court may issue a
3 cost arrest warrant for the arrest of the defendant.

4 4. Following an arrest on a cost arrest warrant, the defendant
5 must be released after ~~seventy-two (72)~~ twenty-four (24) hours in
6 custody, not including weekends. The defendant may be released
7 prior to ~~seventy-two (72)~~ twenty-four (24) hours if:

- 8 a. the custodian is presented with proof of payment in
9 the amount of One Hundred Dollars (\$100.00) to each
10 jurisdiction where the court financial obligations are
11 owed and the new cost hearing date is provided,
- 12 b. the court releases the defendant on the defendant's
13 own recognizance and a new cost hearing date is
14 provided, or
- 15 c. the court conducts a cost or willfulness hearing, as
16 appropriate, pursuant to the provisions of this
17 section and determines the defendant should be
18 released.

19 5. The provisions for issuing a separate summons described in
20 subsection ~~G~~ E of this section shall not apply to a municipal court
21 if the municipal court has previously provided actual personal
22 notice to the defendant of an opportunity for a cost hearing. If
23 such notice was given and the defendant fails to appear, the
24

1 municipal court may issue either a cost cite and release warrant or
2 a cost arrest warrant.

3 6. All warrants for failure to appear at a cost hearing or for
4 failure to pay court financial obligations which have been issued
5 prior to the effective date of this act and which remain unserved,
6 shall be treated as cost cite and release warrants. All warrant
7 fees assessed for warrants for failure to appear at a cost hearing
8 or for failure to pay court financial obligations issued prior to
9 the effective date of this act shall remain in effect unless waived
10 by the court.

11 ~~F.~~ G. Supporting documents in a motion or affidavit for relief
12 from court financial obligation debt or any documents taken into
13 evidence during a cost hearing or willfulness hearing shall not be
14 viewable by the public on a court-controlled website.

15 ~~F.~~ H. 1. After a cost hearing where a defendant is found able
16 to pay a court financial obligation, either in whole or in part, and
17 then becomes delinquent in that payment, a court may conduct a
18 willfulness hearing at any time beginning immediately after a cost
19 hearing has been held and a decision rendered on the court financial
20 obligations. Findings of a defendant's prior ability to pay may be
21 considered as evidence of ability to pay or willfulness at the
22 hearing. The requirements of this paragraph shall not be construed
23 to prohibit the court from holding subsequent cost hearings on the
24 same court financial obligations.

1 2. At a willfulness hearing, the court shall evaluate the
2 following:

- 3 a. whether a cost hearing has been held previously where
4 evidence relating to ability to pay was presented and
5 the court found the defendant was able to pay the
6 court financial obligations, either in whole or in
7 part,
- 8 b. whether there is any new evidence of ability to pay
9 not previously considered or a change in circumstances
10 since the cost hearing,
- 11 c. whether the defendant was afforded sufficient time and
12 opportunity to fulfill the obligation to pay the court
13 financial obligations,
- 14 d. whether the defendant made any efforts to satisfy the
15 court financial obligations, and
- 16 e. whether there are any other relevant facts or
17 circumstances.

18 3. After a finding of willful failure to pay court financial
19 obligations, the court may impose a jail sentence pursuant to
20 Section 101 of Title 28 of the Oklahoma Statutes. A jail sentence
21 may be imposed only under the following circumstances:

- 22 a. the hearing is conducted on the record pursuant to the
23 rules promulgated by the Court of Criminal Appeals,
24 and

1 b. the defendant is represented by counsel or expressly
2 waives his or her right to counsel.

3 4. If a jail sentence is imposed, the court may grant credit
4 for any time already served. At any time after incarceration, the
5 jail sentence may be satisfied upon payment in full of the
6 outstanding balance with credit for any time already served.

7 ~~K. The district court or municipal court, within one hundred~~
8 ~~twenty (120) days from the date upon which the person fails to~~
9 ~~comply with the financial obligation as ordered by the court or~~
10 ~~fails to appear for the offered cost or willfulness hearing, may, if~~
11 ~~the defendant has previously been notified of the possibility of a~~
12 ~~suspension, send notice of nonpayment of any court-ordered financial~~
13 ~~obligation for a moving traffic violation to Service Oklahoma with a~~
14 ~~recommendation of suspension of~~

15 I. No person shall have driving privileges ~~of the defendant~~
16 ~~until the total amount of any court financial obligation has been~~
17 ~~paid or waived by the court. Upon receipt of payment of the total~~
18 ~~amount of the court financial obligations for the moving traffic~~
19 ~~violation, the court shall send notice thereof to Service Oklahoma,~~
20 ~~if a nonpayment notice was sent as provided for in this subsection.~~
21 ~~Notices sent to Service Oklahoma shall be on forms or by a method~~
22 ~~approved by Service Oklahoma~~ suspended for failure to pay fines,
23 court costs, fees, or assessments.

1 ~~H. J.~~ Every county and district court of this state shall fully
2 utilize and participate in the court cost compliance program. Cases
3 ~~shall be referred to the court cost compliance program no more than~~
4 ~~sixty (60) days after the court has ordered the referral pursuant to~~
5 ~~paragraph 4 of subsection G of this section, unless the defendant~~
6 ~~pays the amount owed on the court financial obligation or an~~
7 ~~installment due.~~ When the court refers a case, the updated contact
8 information on file shall be forwarded to a court cost compliance
9 liaison for collection purposes.

10 ~~M. K.~~ The ~~Court of Criminal Appeals~~ Administrative Office of
11 the Courts shall ~~implement procedures and~~ develop standardized
12 forms, procedural rules for implementation of the requirements of
13 ~~this section. Such procedures, rules, and any supplemental forms~~
14 ~~may be made available by the Administrative Office of the Courts,~~
15 and guidelines to aid courts in conducting ability-to-pay hearings,
16 documenting findings, implementing reductions or waivers, and
17 tracking compliance.

18 L. The provisions of this section shall apply to all sentences
19 imposed on or after November 1, 2026.

20 SECTION 2. This act shall become effective November 1, 2026.

21
22 60-2-17205 GRS 03/23/26
23
24